SCARF
Safe, Compassionate, Accountable, Reflective, Fair

NHS
Central and North West London
NHS Foundation Trust

Transgender Staff Policy

Purpose

The purpose of this policy is to:

Address the sensitive and appropriate responses that are expected of CNWL staff with regard to the employment of transgender and non-binary people and the management of gender reassignment of such employees. It provides:

- Guidance for the appointment and employment of transgender people or existing staff who have undergone, are undergoing or are intending to undergo, transition
- A framework for line managers to work to regarding the issues that must be considered and action taken when existing staff, or individuals within the recruitment process, identify themselves as undergoing or wishing to undergo transition.
- Guidance in relation to personal records, single sex facilities, time off for medical appointments, staff briefing and confidentiality.

This policy is essential reading for the following groups of staff:

- All Managers
- Employees
- Human Resources teams

The following groups of staff need to be aware of the existence of this policy:

- All other staff

Key points of the policy:

- As soon as an employee approaches their employer to inform them that they intend to take steps to reassign their gender, they are protected under the Equality Act 2010. Any employee who discriminates against, harasses or victimises a transgender employee could be liable for such acts personally, as could their employer.
- Although the legal framework is limited to Trans people, the Trust also supports non- binary staff who are included (for the purpose of this policy) in the organisation's responsibilities.
- Not all transitioning employees will choose to undergo surgery. Transitioning will involve different steps and activities for different people, and any timescales and communication should be led by the transitioning employee.
- Any Trans employee without a Gender Recognition Certificate (GRC) will be treated no differently to a Trans person in possession of a GRC.

- Anyone, including a manager, who acquires information about someone's transgender status, is liable to criminal proceedings if they pass that information to a third party without the permission of the individual.
- CNWL has devised a process which allows transgender applicants to pass details on to the Disclosure and Barring Service (DBS) without first revealing them to the employer and secondly, to exclude previous names from the Disclosures form to support confidentiality.
- All Managers should undergo training as should their teams to better support Trans and non- binary staff service users and carers. Training should include general information about Trans awareness, and specific information to enable people to understand the needs of any staff member who may be transitioning in the team.

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Transgender Staff Policy

Policy Lead:	J'nelle James, Equality Diversity and Inclusion Manager
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Signed: _____
Nick Green, Chief People Officer

Signed: _____
Joanna Rockliff, Staff Side Co-Chair

Signed: _____
Anne Power, Staff Side Co-Chair

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This Policy will remain in force pending a fuller review of estates and facilities operating procedures, and HR recording systems.

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1.0 CNWL Statement on Equalities and Diversity

CNWL is deeply committed to equality of opportunity and values the diversity of its staff, service users, carers and stakeholders. We seek to provide a supportive, inclusive environment for Trans staff, non- binary staff, service users and carers, and to create a culture whereby those who identify themselves as such will not face discrimination, harassment, bullying or exclusion, and be offered understanding and support.

We will support any individual considering or undergoing the process of transition, and recognise that it is the right of the individual to choose whether they wish to disclose their gender identity. If they choose not to do so, their right to privacy will be respected. We will not tolerate homophobia, biphobia or transphobia. The Trust takes a zero-tolerance approach to discrimination, victimisation, bullying or harassment on the basis of a person's gender identity, trans status, gender expression or sexual orientation.

Whilst we strive to create an inclusive culture that supports our Trans, and non-binary service users, carers and staff, we recognise the need for work based systems to reflect all of the gender titles associated with the different gender identities. Not all of our systems are able to accommodate this at the present time due to nationally pre-determined descriptors; however, we are challenging this. We are also entering into discussions to make our facilities more accommodating to our Trans, and non-binary service users and colleagues. Whilst this will take time to resolve, we want to assure those affected that it does remain a priority for us.

In CNWL we have a framework of behaviours aligning with the Trust values of Compassion, Respect, Empowerment and Partnership with cultural behaviours of SCARF (Safe, Compassionate, Accountable, Respect and Fair) at their heart. To shape and drive an inclusive, safe and respectful culture to achieve our strategic objectives and create a great place to work, for our people now and in the future.

We want to adopt a new mindset and create a culture where we are fair to our people including Trans and non-binary service users, carers and staff. Where we all feel enabled, supported and empowered to see situations as opportunities to learn. Our values - Compassion, Respect, Empowerment and Partnership - will guide us as we make this valuable and lasting cultural shift at CNWL.

As a learning organisation, we will showcase best practice and innovation and share expertise. All our leaders and managers will model our values and behaviours and have access to training that equips them to lead. We will continually learn and improve in our care for both our service users, carers and our people.

CNWL have a variety of sources that staff can refer to if they need advice on any issue relating to gender identity, these include:

- Equality Diversity and Inclusion Team
- LGBT+ Staff Network
- Employee Assistance Programme or
- Useful Organisations and contacts list' (see Appendix G).

2.0 Introduction

This policy sets out CNWL's responsibilities as an employer of Transgender people. The term Transgender is an umbrella term used to describe anyone whose gender identity or expression is different to the gender they were assigned at birth.

The principles in this policy apply equally to transgender staff that may or may not take steps to transition to an opposite sex, either medically or otherwise and to non -binary staff whose gender identity is not exclusively male or female.

While a person may describe themselves as a Tran's man or Trans woman, it is key for CNWL staff to be fully aware that Trans men should be identified and known as men and Trans women should be identified and known as women. As some may not offer their transgender status, nor wish it to be disclosed, preferring just to be considered by their chosen gender.

3.0 Gender affirmation and Trans status

The process of changing gender can take a significant amount of time, and medical treatment may be involved and could range from hormone replacement therapy, to cosmetic surgery, to gender-affirming surgery. However, not all people who identify as Trans undergo surgery. Transitioning is a personal process (rather than a medical process), which involves a person expressing their gender in any way that differs from the physical sex they were assigned at birth. This personal process may include undergoing medical procedures or may include choosing to dress differently, change their name and be referred by other pronouns as part of the personal process of change. All people undergoing or or who have undergone these personal processes of change have the characteristic of trans status and are protected by law.

4.0 Supporting Transgender Staff at Work

Our SCARF value says:

Safe and Compassionate - Listen to and respond to the views, needs and wishes of those we care for and work with, treating everybody, including ourselves, with openness, honesty and kindness

Safe, Compassionate and Fair - Maintain the dignity and safety of all those we care for and work with, acknowledging our own and others' vulnerabilities and courage.

Once a member of staff has indicated their intention to start their transitioning process, then they, their line manager and their Human Resources Manager should meet to formulate an action plan together for managing the transition at work. The action plan, along with any other notes of the meeting, must be kept strictly confidential in the individual's personnel file. Considerations and actions expected of managers and staff is provided in Appendix A, and summarised in a Flow Chart in Appendix H.

The Trust will ensure in the operation of all its functions that no trans person will be treated less favourably on the grounds that they intend to undergo a transition, is undergoing gender affirmation surgery or has at some time in the past undergone a transition. The Trust respects an individual's right to self-identity as male or female or non-binary and commits to recognising all employees and service users of the Trust as their affirmed gender. In instances where the Trans person holds a Gender Recognition Certificate (GRC). The Trust recognises that it is bound by law to refer to the person according to their affirmed gender for all purposes. Furthermore, the Trust has set out processes in this policy which go beyond existing legislation and also protects those without a GRC.

5.0 Legislation

5.1 Gender Recognition Act 2004 (GRA)

In the United Kingdom a person is allowed to change his or her personal details and to live as a member of the opposite sex to that recorded at birth. They can obtain most official documents in their new identity, including a passport, driving license, and National Insurance Card; however, until recently were not allowed to change the gender on their birth certificate, which they can now also change.

The GRA 2004 has ensured that Trans people, who have successfully registered with the Gender Recognition Panel and obtained a full Gender Recognition Certificate (GRC), can now acquire the full legal rights and responsibilities of their acquired gender these include:

- being able to marry a person of the opposite or same gender
- form a civil partnership with someone of the same gender
- being eligible for the state retirement pension and other benefits at the age appropriate to their new gender
- If their birth was registered within the UK, obtaining a new birth certificate in their acquired name and gender from the date of recognition.

The Trust recognises that this legislation is limited in its framework and terminology, and does not recognise non-binary identities. Therefore, all employees with non- binary identities, or any

other gender identity or expression are included in this policy. In addition, any Trans employee without a GRC will be treated no differently to a Trans person in possession of a GRC.

5.2 Equality Act 2010 (EA)

SCARF value says **Fair** - Make sure everyone feels welcomed, valued and respected equally, with tolerance and without judgement

The EA defines the protected characteristic of gender reassignment (referred to trans status in this policy) as:

"Where a person is proposing to undergo, is undergoing or has undergone a process (or part of a process) for the purpose of reassigning their sex by changing physiological or other attributes of sex."

As soon as an employee approaches their employer to inform them that they intend to take steps to reassign their gender, they are protected under the Equality Act. Any employee who discriminates against, harasses or victimises a transgender employee could be liable for such acts personally, as could their employer.

5.3 General Duties Applying to Trans status

The EA includes a set of general duties applying to the protected characteristic of trans status and which came into force in April 2011. This requires public authorities and their staff to have due regard to the need to:

(a) Eliminate transphobic discrimination, harassment, and victimisation

(b) Advance equality of opportunity between those who identify themselves as Trans and non-binary and those who do not

(c) Foster good relations between those who identify themselves as Trans and non- binary and those who do not, in particular to tackle prejudice, and promote understanding.

5.4 Positive Action

SCARF value says **Fair** - Actively look out for the needs of others and take action, especially when we notice they may need help or support

Under the EA, Trusts can take positive action if it is thought that employees or job applicants who are Trans suffer a disadvantage connected to that characteristic, or if their participation in an activity is disproportionately low. Examples would include:

- setting equality targets (but not quotas which are unlawful);
- encouraging people from particular groups to apply where they are under-represented
- training for promotion or skill training for employees from under-represented groups who show potential
- where two job applicants perform equally one of them can be offered the position in order to address under-representation of people who identify as trans or non-binary
- Providing targeted outreach and services to Trans and non -binary people.

6.0 Responsibilities of staff in relation to Transgender and Non Binary colleagues

SCARF value says **Safe** and **Fair** - Work hard to make sure all voices are heard, and people feel empowered and safe to speak up, encouraging through praise the efforts, courage, and achievements of everybody

The Trust expects all of its employees to meet the requirements of the EA, and to treat Trans and non-binary staff with respect. All staff are expected to undergo training for themselves and their teams to better support Trans and non- binary staff service users and carers. Although the legal framework is limited to Trans people, the Trust also supports non- binary staff who are included (for the purpose of this policy) in the organisation's responsibilities above.

Every manager employed by CNWL is responsible for promoting equal opportunities in practice and, where applicable, for preventing staff and patient discrimination. Line managers are responsible for:

- Ensuring that all staff are aware of this Policy and attend any relevant training
- Challenging staff that discriminate and ensuring that the relevant procedures are followed i.e. Dignity at Work etc.
- Supporting their staff to challenge discrimination from service users, carers or the public
- Agreeing a plan with a staff member who is proposing to transition to ensure that they are supported throughout the process.
- Ensuring that a transgender person is addressed and treated as the gender they identify with.

Appendix A- Guidance for supporting staff undergoing transition

SCARF value says **Fair** - Actively look out for the needs of others and take action, especially when we notice they may need help or support

Safe, Compassionate and Fair - Maintain the dignity and safety of all those we care for and work with, acknowledging our own and others' vulnerabilities and courage

The following information is pertinent to Managers, members of the HR team, and transitioning employees:

If an employee is undergoing gender reassignment, it is good practice for the manager to consult with them sensitively about their needs in the workplace and whether there are any reasonable and practical steps that can be taken to help the employee as they undergo their gender reassignment process. The successful support and management of an employee's gender reassignment depends crucially on taking account of the individual's views on how to proceed.

Planning meeting

The process of changing gender can take a significant amount of time therefore managers are strongly advised to start the planning process as soon as possible after a staff member has notified them of their intention to transition. Considerations and actions expected of managers and staff is summarised in a Flow Chart in Appendix H.

Once the member of staff has indicated their intention to start the reassignment process, then they, their line manager and their Human Resources Manager should meet to formulate an action plan together for managing the transition at work. The transitioning process is led by the Trans employee and the employee has the right to have a colleague of Trades Union Rep present should they wish. Transitioning involves different steps and activities for different people, and every Trans person will want to approach their transition differently. Any timescales and communication will be led by the transitioning employee. Managers should ensure that staff are consulted with and asked about how they want to approach different issues, such as how to announce their gender transition to the rest of the workforce e.g. whilst one employee may wish to undergo their transition publicly, another may wish to do so in the most discreet way.

The action plan, along with any other notes of the meeting, must be kept strictly confidential in the individual's personnel file. After a person has transitioned to their affirmed gender identity, or obtained a Gender Recognition Certificate, it would not be appropriate to keep these records within the personnel file and they should be destroyed.

Examples of what such an action plan might include are shown below. Full explanations of each are given further on within this policy, and a summary of considerations and actions expected of Managers and staff in Appendix H.

The action plan should include:

- the expected point or phase of change of name, personal details and social gender

- confirming who the staff member wants as their main point of contact within the organisation. This will typically be their line manager and this person must be present at this initial planning meeting.

- whether the employee is to stay in their current post or be redeployed whether the employee wishes to inform their colleagues (and potentially their clients) themselves, or would prefer this to be done for them,
- training and /or briefing for colleagues or clients as appropriate

- the expected timescale and time off for medical appointments and treatment (see Appendix A)
- adherence with the dress code policy
- establishing the point at which the individual will commence using single-sex facilities in their affirmed gender (such as toilets and changing areas), what amendments will need to be made to records and systems, and who will take responsibility for those amendments.
- identifying what managers and colleagues can do to make the transition easier

Evidence of a name change can be presented to the Human Resources Manager for their work area (if applicable) and can include any of the following:

- A Name Change Deed (e.g. Statutory Declaration)
- Driving license
- Passport

On receiving this information, HR People Services will take all reasonable and practicable steps to ensure that all relevant records such as pay slip, contract of employment, security pass, are updated from the point of transition or new gender identity/expression to reflect the acquired gender role/status. Matters related to clinical records will be addressed through relevant clinical policies.

Employers are advised to create new records rather than amend old ones, to ensure confidentiality. All data protection regulations must also be adhered to (See heading: Data Protection Act 2018). Any historical records will be accessed by the relevant HR Business Partner, in the event of an HR investigation, if required.

Support

Support and assistance will be given to individuals who have made the decision to undergo transitioning during the course of their employment, and also for their work colleagues, as and when appropriate. Support can be sought from 'Workplace Options' via the Employee Assistance Programme which offers emotional support, copying with stress and depression, and LGBT+ support, as well as counselling and other services. Staff can access the employee assistance programme through our health and wellbeing pages on trustnet Employee Assistance

The process of transition requires empathetic handling from all concerned, and everyone needs to adopt the right approach in the workplace. It is important for managers and HR colleagues to be aware that the Trans employee leads the transitioning process, and that every transition is unique.

Managers must ensure that all members of staff refer to the transgender person by their new name and use pronouns appropriate to their affirmed gender. Initially, people may occasionally get mixed up, and the transgender person should be aware that this could happen and be prepared to make allowances.

Managers must also be aware of the genuine concerns that members of staff may have, and resolve any issues quickly. Unfortunately, no matter how much preparation is made and support given, there may still be people who do not understand the situation or are unsympathetic. It is advisable to discuss this in advance with the transgender person and agree informally how they would prefer this to be managed. Transgender and non-binary people may be particularly vulnerable to abusive and harassing behaviour and it must be made clear to all that this will not be tolerated. Any incidents of misconduct, harassment, bullying or victimisation should be dealt with quickly and in accordance with CNWL's Disciplinary Policy and Bullying and Dignity at Work Policy.

Adherence to dress code

It is good practice for an employer with a dress code to allow flexibility during transition, and to respect the individual's wishes as to when they feel comfortable to change into the form of dress appropriate for their affirmed gender. However, having made the decision to dress in the affirmed gender, the individual will be expected to adhere to the Dress Code Policy.

Use of Facilities

The employer and employee should establish the point at which the use of facilities such as changing rooms and toilets should change from one gender to the other. It is advised that the individual starts to use the facilities for their new gender at the point where they begin to live in that gender and feel comfortable.

It is not acceptable for CNWL staff to insist on a transgender employee using separate facilities such as a disabled toilet, nor facilities of their former gender.

Where possible and upon discussion with Estate and Senior Management, the addition of gender neutral facilities may be favourable whilst maintaining some Male/Female options.

Victimisation

The Equality Act 2010 makes it clear that it is unlawful to victimise someone by treating them less favourably because they have made a complaint about trans status discrimination, or someone else on their behalf, just as it is unlawful to victimise someone for asserting their rights because of, sex discrimination. CNWL will not tolerate any victimisation of anyone as a result of that person's complaint about discrimination based on their gender identity (including non-binary identities or gender expression). Managers who become aware of such misconduct will deal with the matter quickly and in accordance with CNWL's Disciplinary Policy, and Dignity at Work Policy.

Relocation or remaining at the same work location

A transgender person may want to be relocated during the transition period if for example; their working environment is stressful, perhaps because they have direct contact with the public. Relocation may not always be necessary or appropriate, however, and any decision should always be made in consultation with the individual. The staff member should not be made to feel like they have to relocate, but rather that they have a personal choice in the matter. Some

employees may prefer to stay within the environment in which they have made friends and where they feel supported.

Likewise, the individual may wish to transfer to another position at the point at which they adopt their affirmed gender, and it is important to discuss how to manage this with the Human Resources Manager to achieve the best outcome.

Leave (if applicable)

The law recognises that someone who is undergoing a medical transition to their affirmed gender will require sometimes substantial periods of time off work to undergo treatment. As far as possible, managers should discuss how much time the individual will need to undergo gender affirming treatment. The law does not specify a minimum or maximum time that employers should allow for. However, if the transgender employee is absent for a long period, termination of contract or ill health retirement, as laid out in the CNWL Sickness and Absence Policy, may apply.

An employee who undergoes medical or surgical treatment relating to transitioning will receive the appropriate sick pay in accordance to the CNWL Sickness and Absence Policy. They should also follow their normal policy for medical appointments. Managers should try to offer flexibility to individuals who may need to take holiday or rearrange working hours in order to attend additional appointments outside of work.

At the point of living in their affirmed gender, an employee may be allowed to take a short time off work as annual leave and return in their new name and gender role. This period can be used as an opportunity to brief managers and colleagues and to ensure that managers stress the need for proper treatment of the employee. All briefings should be complete by their return.

Employers should remember that it would constitute unlawful discrimination if they treat a transitioning individual less favourably than someone who is absent for some other medical reason, where it would be reasonable to allow a similar amount of time off work. It is also unlawful to dismiss an individual for reasons of impending transitioning.

Confidentiality

It is important to understand that anyone, including a manager, who acquires information about someone's transgender status is liable to criminal proceedings if they pass that information to a third party without the permission of the individual. This would include, for example, the individual's colleagues, Human Resources staff or another manager.

If someone has transitioned prior to joining CNWL or joining a new department, the manager should not mention their transgender history. This could constitute a criminal offence in the case of someone who has obtained a Gender Recognition Certificate. As well as possible criminal intervention, Trust policies concerned with data protection would apply, and where misconduct is believed to have happened become a disciplinary matter.

Data Protection Act 2018 (DPA)

Under the Data Protection Act, trans status would constitute 'sensitive data' for the purposes of the legislation. And can only be processed for certain specified reasons set out in the Act such as; where the employee gives explicit consent or where it is necessary for carrying out obligations under employment law.

Name change and change of gender marker on workplace systems

An individual does not need to hold a GRC in order to have their details changed on any workplace system.

The trans employee will need to identify the point at which their affirmed gender is formally established in terms of the personnel records, and any consequent alterations (for example, security passes, the individual's choice of name for email, staff directory entry etc.), and inform their manager of this. Their staff member can then contact HR 'People Services Team' to request changes to the individual's Electronic Staff Record (ESR) via
Email**:** cnw-tr.peopleservices@nhs.net copying in their line manager.

The employer should ensure that all documents, public references, prospectuses, and employment details reflect the acquired gender of the person. This will prevent any breach of confidentiality. Where documents have been seen and copies taken at the point of starting employment (such as a birth certificate or passport) then every effort should be made to replace those with equivalent documents in the acquired name and gender.

To maintain confidentiality, where possible new records should be produced, for instance the cover of a personnel file should be replaced and a new name included rather than the old file have the name crossed out and replaced. In some instances, however, it may be necessary to retain records relating to an individual's identity at birth, for example, for pension or insurance purposes. However, if a person has obtained a Gender Recognition Certificate these MUST be replaced with new details and old records destroyed.

Similarly, if a non-binary member of staff wanted to change their title, gender, or name etc. the same process would apply and the staff member can email people services as above to request the change copying in their line manager.

Access to employee records

The right of the individual to maintain the confidentiality of their previous identity needs to be secured. Access to records showing the change of name and any other details associated with the individual's trans status, (such as records of absence for medical treatment) must be restricted to staff who need the information to do their work. They could include people directly involved in the administration of the process, for example the Human Resources Manager/Advisor, Payroll Clerk and Occupational Health. They do not include colleagues, clients or line managers, other than the manager at the time of the transition). Breaches of confidentiality should be treated in the same serious manner as disclosure of personal details of any other member of staff (see DBS checks below).

Transgender staff may choose voluntarily to disclose information at a secondary level, for example, answering an equal opportunities questionnaire, or asking for support from a line manager. Again, strict confidentiality should be observed as further disclosure must not be made without the express permission of the transgender staff.

When an employer can make a disclosure

The GRA defines information about a person's application for gender recognition and a person's gender history as 'protected information'. This means that if an employer or employee acquires the information in the course of official duties, it is a criminal offence to disclose it. It is not an offence, however, to disclose 'protected information' if the person cannot be identified or if the individual gives their consent.

Informing colleagues

There is no general need or obligation to inform colleagues, clients or the public that a person is transitioning. However, such information may be considered appropriate where the relationship with that individual was established prior to their change of gender and is to continue.

It is good practice for the transitioning employee to take the lead in informing their employer about anyone else who should be made aware of their transition or of any intention to transition. Trans employees must explicitly express their consent for their employer to disclose their Trans status, as disclosing it without consent is against the law. If the transgender employee prefers to inform people themselves, then the employer will need to know when the disclosure is to take place and in what detail, so that they can provide appropriate support. Generally it will only be those who knew the person before the transition who will have to be informed. There will be some others who need to know for administrative processes, such as Payroll, however confidentiality should be maintained as much as possible.

During transitioning and once the transition period is complete, it is **never** appropriate to inform colleagues, clients and the public that an employee is undergoing or has in the past undergone transitioning. If such an employee is in possession of a Gender Recognition Certificate it is unlawful to disclose their transgender status without their consent.

Training or briefing of colleagues or clients

Whether or not the individual remains in the same post, a plan for support during the transition and after will need to address such questions as what information and training will need to be provided for managers, colleagues and potentially for their clients.

Education should take place on two levels: general information about Trans awareness and specific information to enable people to understand the needs of the person involved.

Handling media interest

Instances of gender transition can attract the attention of the local and national press. If the organisation has a press office it should prepare a statement which can be issued as and

when necessary. Other staff should be advised to maintain strict confidentiality and not provide any information. If an employee is being harassed by the media, their employer should try to protect them, and consider strategies which minimise personal exposure and the need for the person to defend their decision. In extreme cases, employers and employees can complain to the Independent Press Standards Organisation https://www.ipso.co.uk/complain/ .

Appendix B- Guidance for members of the HR team and Managers

SCARF value says – **Fair -** Hold in mind the importance of choice, and find ways to provide and communicate available choices to those we care for and work with

Fair - Share expectations of ourselves and others with clarity and respect and are clear when something is outside of our control or we are unable to deliver

Whilst this further guidance is intended for members of the HR team and Managers, all staff are advised to familiarise themselves with the content below for information purposes:

Disclosure at interview/on joining the Trust

Interviewees may not necessarily want to disclose their transgender status at interview, and it is not a question that should ever be asked. On joining the organisation, some transgender people may not have any identification documents, qualification certificates etc. in their acquired gender, and may have to disclose their transgender identity. Employers must ensure that this information is kept confidential. Also if the interviewee chooses to reveal their Trans status it must be kept confidential.

References and certificates of qualifications

When an employer is asked for a reference for a transgender person, they must provide it, without hinting that the person has had a change of gender. If the employer has to keep evidence of professional status or qualifications, they should discuss with the individual concerned how to retain such evidence on file – if, for example, certificates are in the individual's previous name given – so as not to compromise or breach disclosure of protected information

DBS checks

DBS checks help employers in the public, private and voluntary sectors identify candidates who may be unsuitable for certain work, especially those positions that involve contact with children or other vulnerable members of society.

To enable it to do its job, the DBS check ensures any previous names and/or gender of prospective employees. However, CNWL has now devised a process which allows transgender applicants to pass details on without first revealing them to the employer and secondly, to exclude previous names from the Disclosures form.

The DBS will then be subject to appropriate checks; this avoids the need for disclosure about gender history or former name to the employer or voluntary body at the application stage, but allows the DBS to carry out the requisite checks against any previously held identities. It should be noted that where a conviction or other relevant information has been recorded in a previous name, this will be revealed on the Disclosure and as such details of any previous identity may be revealed. Where there are no convictions recorded, the details of any previous names that have been provided directly to the DBS will not be revealed on the Disclosure.

Transgender applicants wishing to take advantage of this separate procedure should contact the DBS for further details (see list of Useful Organisations in Appendix G).

Recruitment to a post with a 'single-sex occupational requirement (OR)'

It may be unreasonable for employers to refuse to recruit someone on grounds of gender reassignment or non -binary status, even if a single-sex OR applies to the post:

E.g. where a task requiring to be done by a person of a particular sex forms **only part** of a job and could be allocated to other employees. The onus is on the employer to show that they acted reasonably.

Failure to recruit a person with Trans status and who is living and presenting in their new gender may be considered unreasonable under the law and may lead to claims of discrimination by those aggrieved. This also applies to a non- binary person in principle although not covered by existing legislation.

A job holder changes gender in a job to which a 'single-sex OR' applies

This is obviously rare, but can happen. If it does, the legislation allows the employer to consider dismissing the individual or taking some other form of action. The employer must be able to show that an OR applies to that particular job, **and** that the way they have treated the individual is reasonable in all the circumstances. In each case consideration should be given to relocating the post holder to a different post.

Transgender Voluntary workers

Although volunteer workers are not technically protected under employment law, The Trust intends for all the anti-discrimination and confidentiality principles contained within this guidance to apply equally to individuals working on a voluntary basis within the Trust.

Appendix C- Guidance for All Staff

SCARF value says **Respect** and **Fair** - Reflect to understand the impact of our own conscious and unconscious bias. Recognising, learning from and celebrating others' strengths, differences, knowledge and qualities. Especially the lived experience of those we care for and work with

Fair - Make sure everyone feels welcomed, valued and respected equally, with tolerance and without judgement

All employees have a personal responsibility to support the equal and fair treatment of colleagues to ensure people are treated consistently in a non-discriminatory manner. All staff members are responsible for:

- Complying with this policy
- Challenging/reporting discriminatory practice and language

Training

All staff can attend LGBT+ awareness training sessions run by the LGBT+ staff network, which cover transgender equality, up to date with terminology, and legal updates in this area. Sessions can be booked via the Learning and Development Zone, and more information is available on the staff intranet page https://staff.cnwl.nhs.uk/i-want-info/equality-diversity-and-inclusion/staff-networks/lesbian-gay-bisexual-and-transgender-lgbt-network. Seek advice from the Equality Diversity and Inclusion Team if you are unsure. Policies and documents to read are: Dignity at work policy, Dress code policy, The CNWL Way: Our Staff Charter and our SCARF awareness Training Sessions.

Confidentiality

Staff must respect confidentiality at all times. It is unlawful to disclose information about a person's gender identity without their authority to do so. This information must be kept confidential at all times. Any person or body found guilty of this offence will be subject to criminal proceedings, and a fine of up to £5,000 if convicted. Staff should not assume that because a transgender person has shared they gender identity with you that it is ok to tell other colleagues. Staff should check with the person to confirm

Language: Names and pro nouns

Staff should refer to the pronoun and name specified by the transgender or non-binary person. Try asking: May I ask how you prefer me to address you, for example what pronoun do you use? Or please remind me what your name is? Most people if asked in a sensitive manner will appreciate the question and simply tell you.

Transphobic Language

The use of transphobic and abusive language is not tolerated in CNWL under any circumstances. Abusive language should not be used e.g. misnaming, deadnaming or mis-gendering them (using the wrong pronoun when referring to them in conversation). Taunting or inappropriate questions or comments about a trans person's gender or gender identity is not acceptable.

Any allegations made of such misconduct will be investigated and where appropriate sanctions issued using the Trust Disciplinary Policies and procedures. Transphobic language includes language, jokes or 'banter' that is negative or disrespectful of, or that perpetuates stereotypes about, Trans people.

Dignity and Respect

Staff should avoid doing any of the following, which are often deemed to be insensitive and disrespectful in the Trans community:

- Asking questions several times in disbelief, and in a public setting or in a private setting
- Calling other staff members to "have a look". Openly laughing at trans people
- Inappropriately addressing Trans people, by deadnaming and not acknowledging a change of name or title, or using the incorrect pronoun. When someone is referred to with the incorrect pronoun, it can make them feel disrespected and alienated.
- Referring to the trans person as "her" or "him" when this is not appropriate
- Refusing to treat a trans person as their chosen gender
- Asking about a transgender person's genitals, surgery, or sex life
- Sending correspondence addressed to the Trans person's name, gender or title prior to transition, despite notification of the change.

Staff can treat Trans colleagues with dignity by:

- Avoiding assuming a person's gender based only on their appearance and voice
- Assuming that everyone selects the facilities appropriate to their gender
- Asking those who transition how they can be supported
- It is acknowledged that mistakes will happen, in which case the best thing to do is to apologise (in private if possible) quickly sincerely and move on.

Appendix D- Glossary

Allies of Trans people

A person who supports members of the Trans communities

Affirmed Gender

The new gender of a person who has had their gender reassigned and/or legally recognised.

Androgynous

A gender expression that has elements of both masculinity and femininity

Bigender

A person who fluctuates between traditionally “woman” and “man” gender-based behaviour and identities, identifying with both genders (and sometimes a third gender).

Deadnaming

Deadnaming is the act of referring to a transgender or non-binary person by a name they used prior to transitioning, such as their birth name. Deadnaming may be unintentional, or a deliberate attempt to deny, mock or invalidate a person's gender identity.

Gender

Often expressed in terms of masculinity and femininity, gender is largely culturally determined and is assumed from the sex assigned at birth.

Gender dysphoria

A medical term used to describe when a person experiences discomfort or distress because there is a mismatch between their sex assigned at birth and their gender identity. This is also the clinical diagnosis for someone who doesn’t feel comfortable with the gender they were assigned at birth.

Gender expression

The external display of one’s gender, through a combination of dress, demeanour, social behaviour, and other factors, generally made sense of on scales of masculinity and femininity. Also referred to as “gender presentation.”

Gender identity

A person’s innate sense of their own gender, whether male, female or something else, which may or may not correspond to the sex assigned at birth.

Gender non-conforming

A gender expression descriptor that indicates a non-traditional gender presentation (masculine woman or feminine man) 2 a gender identity label that indicates a person who identifies outside of the gender binary. Often abbreviated as “GNC.”

Gender reassignment

Another way of describing a person’s transition. To undergo gender reassignment usually means to undergo some sort of medical intervention, but it can also mean changing names, pronouns, dressing differently and living in their self-identified gender. Gender reassignment is a characteristic that is protected by the Equality Act 2010, and it is further interpreted in the Equality Act 2010 approved code of practice.

Gender role

The way that the person lives in society and interacts with others, based on their gender identity

Gender Recognition Certificate

This enables Trans people to be legally recognised in their affirmed gender and to be issued with a new birth certificate. Not all Trans people will apply for a GRC and you currently have to be over 18 to apply. You do not need a GRC to change your gender markers at work or to legally change your gender on other documents such as your passport.

Intersex

A term used to describe a person who may have the biological attributes of both sexes or whose biological attributes do not fit with societal assumptions about what constitutes male or female. Intersex people may identify as male, female or non-binary. Stonewall works with intersex groups to provide its partners and stakeholders information and evidence about areas of disadvantage experienced by intersex people but does not, after discussions with members of the intersex community, include intersex issues as part of its current remit at this stage.

Mx

/ “mix” or “schwa” / – an honorific (e.g. Mr., Ms., Mrs., etc.) that is gender neutral. It is often the option of choice for people who do not identify within the gender binary: *Mx. Smith is a great teacher.*

Non-binary

An umbrella term for a person who does not identify as only male or only female, or who may identify as both.

Outing

Involuntary or unwanted disclosure of another person's sexual orientation, gender identity, or intersex status.

Person with a Trans history

Someone who identifies as male or female or a man or woman, but was assigned differently at birth. This is increasingly used by people to acknowledge a Trans past.

Pronoun

Words we use to refer to people's gender in conversation - for example, 'he' or 'she'. Some people may prefer others to refer to them in gender neutral language and use pronouns such as they / their and ze / zir.

Trans

An umbrella term to describe people whose gender is not the same as, or does not sit comfortably with, the sex they were assigned at birth. Trans people may describe themselves using one or more of a wide variety of terms, including (but not limited to) Transgender, Transsexual (although this is considered an outdated term), Gender-queer (GQ), Gender-fluid, Non-binary, Gender-variant, Crossdresser, Genderless, Agender, Non gender, Third gender, Two-spirit, Bi-gender, Transman, Transwoman, Trans masculine, Trans feminine and Neutrois.

Transgender man

A term used to describe someone who is assigned female at birth but identifies and lives as a man. This may be shortened to Trans man, or FTM, an abbreviation for female-to-male.

Transgender Woman

A term used to describe someone who is assigned male at birth but identifies and lives as a woman. This may be shortened to Trans woman, or MTF, an abbreviation for male-to-female.

Transitioning

The steps a Trans person may take to live in the gender with which they identify. Each person's transition will involve different things. For some this involves medical intervention, such as hormone therapy and surgeries, but not all Trans people want or are able to have this. Transitioning also might involve things such as telling friends and family, dressing differently and changing official documents.

Transphobia

The fear or dislike of someone based on the fact they are Trans, including the denial/refusal to accept their gender identity. Examples of transphobia statements which staff should avoid making could be:

- Speculating about someone's gender – *"Is that a man or a woman?"*
- Purposefully ignoring someone's preferred pronoun – *"He/She needs to…"*
- Disclosure of someone's trans history –*"Yeah, he used to be a woman"*
- Inappropriate questioning about medical treatment – *"So have you had, you know, the surgery?"*• Questioning someone's ability to 'pass' –*"She'd be more convincing if she used a bit more make-up"*

Transsexual

This was used in the past as a more medical term (similarly to homosexual) to refer to someone who transitioned to live in the 'opposite' gender to the one assigned at birth. This term is still used by some although it is considered outdated and many people prefer the term Trans or transgender.

Transvestite

The clinical name for a cross-dresser or a person who dresses in the clothing of the opposite sex. Generally, transvestites do not wish to alter their body and do not necessarily experience gender dysphoria. This term is considered outdated as well.

Ze / zir / "zee", "zerr" or "zeer"/

Alternate pronouns that are gender neutral and preferred by some Trans people. They replace "he" and "she" and "his" and "hers" respectively. Alternatively some people who are not comfortable/do not embrace he/she use the plural pronoun "they/their" as a gender neutral singular pronoun. (These are common examples used; people may make up their own).

Appendix E- FAQs on Transitioning

1. Where can I get confidential advice around transitioning?

This guidance sets out a range of contacts for organisations who offer information, advice and support on transitioning.

2. I identify as Trans and wish to transition, which do I need to contact first for support in the workplace and what support is available?

This is a very individual decision and support is available through a number of sources listed in this document. Your line manager is the person who would usually assist you through this process but support is also available internally via:

HR teams and unions

Equalities Diversity and Inclusion Team

LGBT Staff networks,

Occupational Health – for support with health concerns

People at work help line, which provides access to specialist counsellors

3. Will all my colleagues be informed of my transition?

Your manager will arrange to meet you to identify what support can be provided to you in the workplace during your transition. You will have the opportunity to discuss what information should be shared and who this needs to be shared with and the timescales for this. Your manager will seek your consent before any information is shared with colleagues. Colleagues who work closely with you are normally likely to need to know to ensure that good working relationships are maintained; however your privacy will be respected should you not wish to disclose your gender identity.

4. Can I assume a different role within the organisation while I'm transitioning?

You will have the opportunity to discuss this with your manager. They will consider whether any of your duties need to be temporarily adjusted during your transitioning and will consider any request to be moved to a different role in the organisation during this period and whether this request can be accommodated.

5. Can I use the facilities, for example changing rooms and toilets, which match my gender identity?

You will have the opportunity to discuss this with your manager. You may use the toilets and changing facilities in accordance with the gender which you present in. It would be helpful to agree a date when you will start to use the facilities in line with your chosen gender or non-binary identity with your manager so that they can provide support if required.

6. Who do I go to if I'm being bullied or harassed about my transition or gender identity?

You should report any incidents of bullying and harassment to your line manager or through another senior manager in your service area in line with the dignity at work policy. Alternatively you can raise concerns through HR teams, your union, E&D Team, or the LGBT staff network, in line with the dignity at work policy.

7. What steps if any should a manager take if they believe that a member of their team is transgender but the individual has not disclosed this to them?

If a manager believes that an employee is transgender or non- binary, but the individual has not disclosed this information to the employer, the employer should respect the individual's choice. However, the manager should still support the individual including ensuring that opportunities for equality training for team members is up to date, and that team members have access to sources of advice and information for transgender people.

8. How do I respond if a customer/client/service user is using inappropriate language in relation to a colleague who is transitioning?

You should politely let the customer/client/service user know that their language is inappropriate and let your manager know so that they can decide whether any further action should be taken.

9. What is a pronoun and how do I know which one to use?

Pronouns include he/she, his/hers etc. Clarity on individual preferences should be sought from the employee who is transitioning. Some individuals may have a preference for more neutral pronouns such as: they, per, zie or fey; and the title Mx may be preferred to Mr, Mrs, Miss or Ms.

Appendix F - Case Studies

Employment

B transitioned from male to female while working as a health care assistant on a ward. After discussion with management it was decided that she would remain in a client facing role as she was well liked by colleagues and service users and she felt happy in her present work environment. Her colleagues were very accepting of her transition. During a busy period a few weeks into transition B noticed a female patient who moved away whenever she approached to see if she could help. Finally another staff member became free and assisted the patient. When the patient finished with the nurse she complained that she had to wait a long time because she did not want to be helped by B. The patient called the ward manager who listened to her complaint and then explained that B was a capable and valued member of staff and that it was not CNWL's practice to discriminate on any basis and that it did not allow clients to discriminate against staff either.

M was working as a ward manager when she began her transition to female. Her employer discussed the possibility of temporary redeployment out of the public gaze, but M preferred to remain with her team. So the manager (in discussion with HR) relaxed its dress code, giving M flexibility over the length and style of her hair, her jewellery and makeup, prior to the point at which she felt comfortable in a skirt rather than trousers. For a period some service users perceived her as female and others as male, but M felt happy to accept this, and indeed used the perceptions of customers as an indicator of when to begin presenting as unequivocally female.

K is escorting a patient abroad. Her manager is new to CNWL and requires that all employees travelling abroad on business must take their birth certificate as additional proof of identity. He tells K that, as well as her passport, she will need to take her birth certificate as additional proof of her identity. Also, she will need to leave copies of both with HR before she goes on the trip. K has not told her manager she transitioned because she wants to keep her past as a man confidential. She didn't want to apply for a Gender Recognition Certificate, so does not have a new birth certificate as K. To show her original birth certificate would 'out' her. K offers her photo driving license as K instead. The manager's insistence on seeing her birth certificate is likely to be indirect discrimination because the requirement to take a birth certificate disadvantages transgender people and puts K at a disadvantage. Her driving license/passport can therefore be accepted as an alternative.

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Appendix H - Managing Staff Undergoing Transition – Flow Chart

Trans employee

Staff member informs Line Manager of intention to transition

Line Manager and Human Resources

Line Manager arranges meeting between staff member, manager and HR manager (including Union rep. or colleague if staff member wishes).
Staff member provides evidence to HR Manager (if applicable) i.e.

- Letter from GP or Gender Specialist
- Evidence of change of name

Notes made. Action Plan agreed

Action Plan
Manager together with staff member draft an action plan which should include the following (see Appendix A):

- the expected point or phase of change of name, personal details and new gender
- Main point of contact within the organisation.
- current post or redeployment
- who informs colleagues
- training/briefing of colleagues/clients
- timescale/time off for medical/surgical procedures dress code
- timing to commence using single sex facilities in new gender
- amendments to be made to records and systems
- identifying what managers/colleagues can do to make the transition easier

Records updated:

- pay slip
- contract of employment
- staff directory (Lync)
- security pass/ID badge
- new cover on personnel file (not simply cross out previous name)

Copies of identification documents giving previous name/gender should be destroyed and replaced with new ones

Notes of meeting/action plan to be removed from personnel file and destroyed once transition complete

Appendix I – Name changes

You can find more information from the Government on how to change your name and free forms here https://www.gov.uk/change-name-deed-poll

Information on changing your name is however very confusing and we will try and summarise it for you. There are essentially two processes that you can use to change your name, Deed Poll and Statutory Declaration.

Deed Poll

You can prepare a deed poll yourself here. Your self-prepared deed poll must be witnessed by two persons. This website creates a deed poll for free. https://freedeedpoll.org.uk/

Whilst there are many companies who will accept a self-prepared deed poll, there may be companies who would only accept an enrolled deed poll, although this is unusual.

An enrolled deed poll is enrolled with the Royal Courts of Justice after which it will be held in the National Archives. At the same time, notification of your change of name has to be placed into the London Gazette. There are very few people that go through the process of enrolling their Deed Poll. There is a set cost for the process of enrolment and you have to organise it.

In order to have a self-prepared deed poll enrolled you have to get it witnessed by people who have known you for at least 10 years. The witnesses must then complete a statutory declaration (statement of fact that they are who they are and have known you for 10 years) which has to then be sworn in front of a solicitor, Commissioner of Oaths or an officer of the Senior Court (which will incur a fee).

Given the complicated system above there are many companies and solicitors that will prepare a deed poll for you. In the case of solicitors they will prepare the paperwork, obtain evidence from you that you are a British Citizen or have a Certificate of Naturalisation and then get you to sign the prepared paperwork which they will then witness, thereby eliminating the need for you obtaining other witnesses. Charges vary from practice to practice and you may want to check whether they include enrolling your deed poll as part of their fee. They are also likely to charge for additional official copies.

There are many on-line companies who provide a deed poll service. They again will prepare the paperwork for you to sign and will require evidence from you to say that you are an entitled British Citizen or hold a Certificate of Naturalisation. They will send you the paperwork which you will then sign and get witnessed by people who have known you but are not related to you. Because the company has independently verified your identity and entitlement, most companies and organisations will accept this Deed Poll. Charges will again vary and it is likely they will charge for additional official copies.

In the examples above both the solicitors and the on-line companies will then hold copies of the documentation should you ever misplace yours.

Statutory Declaration

This is often known as a 'stat dec'. Essentially a statutory declaration is a written statement of fact that is signed in the presence of a:

- Solicitor
- Notary of the public
- Justice of the Peace
- Commissioner for Oaths
- Any other qualified person

The difference between a 'stat dec' and a self-prepared deed poll is that a statutory declaration must be signed in the presence of one of the above people and does not require you to find other witnesses to sign it. A useful template is provided here.

Although a statutory declaration can be witnessed by 'any other qualified person' in our experience to avoid problems with companies and organisations accepting the document, it is easiest to get it witnessed by a solicitor. Call different practices and ask how much they charge to witness a statutory declaration in advance of booking an appointment as prices can vary. They may include one set fee for witnessing a number of official copies, or they may charge per document. It may be an idea to ask the solicitor to keep one of the documents for their records in case you ever lose yours. You can include your title on any deed poll or statutory declaration should you wish. The present options are Mr, Mrs, Miss, Ms. You can choose whichever of these you want should you wish to include it on the paperwork; you cannot include Mx or any other title not yet recognised as legal.

Changing your name officially will mean that your identity documents become out of date, because they will no longer show your legal name. This means that you need to be ready to make changes to your other legal documents, such as your passport or driving licence, when you change your name legally.

Specific processes for certain agencies – Changing Name and Gender

Some organisations have specific procedures for processing name changes relating to changes in social gender role. Employers, educational establishments, registration bodies, your local NHS GP practice, hospitals, utility companies, and service suppliers such as banks should be prepared to change your details on request. Some may ask for evidence in the form of a statutory declaration or deed poll, but that is all the process should involve.

Gender Recognition Certificates as proof of gender identity

Some organisations may mistakenly believe that they are not supposed to change their records to show your new name and appropriate title (Mr, Miss, etc.) until you have obtained a Gender Recognition Certificate. This is incorrect and in most cases would constitute discrimination.

It is mainly the case that nobody can demand to see or record the details of a Gender Recognition Certificate, if you have one, before they will alter your gender identity on their

records. If someone requires proof of your legal gender then you could show them your birth certificate.

One exception to this is HMRC who will usually be automatically informed of your Gender Recognition Certificate unless you state otherwise. If you have not opted for them to be automatically informed then they can require you to provide your GRC before they will alter the gender marker on your records.

Other than the exception above the Gender Recognition Certificate (GRC) exists only for the Gender Recognition Panel to instruct the Registrar of Births to make a new entry in their register, from which a birth certificate can be drawn.

The GRC states clearly that it has no other purpose. Recording sight of a GRC would automatically lead to a breach of Section 22 of the Gender Recognition Act, since sight of the record by any other person would constitute an unlawful disclosure of protected information.

It is expected that there will be a consultation on the current use of GRCs, and how they might be adapted, in the coming years.

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Equality and Human Rights Impact Assessment Form

Equality and Human Rights Impact Assessment

1. What is the **name** of the Policy, Service Development, Business Plan, Strategy or Organisational Change being assessed:

- **Transgender Support Policy for Staff**

2. Briefly describe the aim of the Policy, Service Development, Business Plan, Strategy or Organisational Change that is being Impact Assessed.
What needs or duties is it designed to meet?
What are its intended outcomes?

- **The Transgender support policy aims to give all staff a clear understanding of how to support transgender and non- binary staff in the workplace, irrespective of whether the staff member chooses to undergo surgery or opts out.**

3. Does this development have an impact on information quality, information security and/or information compliance, including staff or patient privacy? **Yes**

4. If yes, have you completed an information governance impact assessment form or otherwise contacted the Information Governance team? **Yes**
For the purposes of this assessment, the relevant protected characteristics are:

- **Gender reassignment**
- **Gender/sex.**

MEETING THE GENERAL DUTIES

5. How does the service / policy / procedure / development **contribute in a positive way** to:
(a) eliminating discrimination, harassment, victimisation and any other conduct that is prohibited by or under the Equality Act 2010;

The policy aims to eliminate discrimination, harassment, victimisation by:

- **Holding staff to strict confidentiality principles to avoid 'outing' trans staff.**
- **Clarifying unacceptable language that must not be used to avoid discrimination, bullying, harassment, and victimisation**
- **Allowing some flexibility around dress code with trans staff which limits potential misunderstandings.**

(b) advancing equality of opportunity between persons who share a relevant protected characteristic and persons who do not share that characteristic.

- **Helping those who do not share the gender reassignment, or gender/ sex protected characteristic to understand the process involved, and how to support anyone undergoing transition, or who may be non-binary.**
- **Supporting transgender and non-binary colleagues to be themselves at work, without risk of being bullied or harassed.**

(c) fostering good relations between persons who share a relevant protected characteristic and persons who do not share that characteristic.

- As above, with recognition that people will share multiple protected characteristics at once.

ADVERSE IMPACT

6. Is there any evidence that the subject of this EHRIA could affect people having a protected characteristic disproportionately, thus leading to an adverse impact? The disproportionate effect or adverse impact might be actually happening or have the potential to happen.

No

What evidence have you analysed to inform your conclusion? For example, evidence might be from equalities data on service users accessing/not accessing the service, findings from patient or staff surveys, service user complaints, staff grievances, concerns from local or national pressure groups or public concern in the local or national media.

Evidence is based on national reports (LGBT in Britain Trans Report – Stonewall 2018, LGBT Britain Health Report- Stonewall 2018, LGBT in Britain Work- Stonewall 2018) which highlight that supporting Trans and non-binary staff to be themselves in the workplace has a positive effect. Such reports highlight that without policies and procedures in place to support trans people, issues such as; bullying, harassment, victimisation and being more susceptible to depression and isolation is likely. This policy is aimed at raising Tran's awareness so that staff can take personal responsibility for supporting transgender and non -binary colleagues in the workplace.

HUMAN RIGHTS

7a.How does the subject of this EHRIA contribute to encouraging respect for human rights?

This policy encourages respect for human rights, by putting a framework in place to support staff in their gender expression/identity.

7b.Is there any evidence that the subject of this EHRIA is at risk of unlawfully restricting an individual's human rights?

No

CONSULTATION

8. Have you consulted representatives from groups having protected characteristics (staff, service users, carers, other stakeholders or expert groups) as part of your assessment?

Yes

Please give details of who have you consulted, the method used, the results of the consultation, how the results have been used and where they have been published.

- **Equality Diversity and Inclusion Steering Group**
- **LGBT+ Staff Network**
- **HR departments**
- **Stonewall Project Group**
- **Executive sponsors**
- **Trust Solicitors**

Consultation was undertaken electronically via email and all comments considered as part of the policy drafting process. Results were discussed at the EDI Steering Group.

RESPONDING TO ADVERSE IMPACTS / BREACHES IN HUMAN RIGHTS

9. Can any identified adverse impacts relating to Equality or breaches in Human Rights be justified? If they cannot be justified, how do you intend to deal with it?

N/A

MONITORING

10. Provide information on how you intend to monitor for actual adverse impact in the future

If you need more space for any answers, please continue on a separate sheet.

- **LGBT staff network feedback**
- **Patient feedback via patient support service, Datix, Friends and Family test, and other patient surveys**
- **Staff feedback via occupational health**
- **Direct feedback from managers**

Equality and Human Rights Impact Assessment Action Plan

The following actions will be undertaken as a result of the Equality and Human Rights Impact

Assessment to address identified adverse impact:

Adverse impact identified	Action to be taken	Timescale	Responsible Manager
N/A			

To be signed by the manager undertaking the full assessment

Name: **J'nelle James**

Designation: **Head of Equality Diversity and Inclusion** Date: **12th November 2020 and 5th January 2024**

To be countersigned by the Senior Manager, i.e. Service Head, Line Manager, Director, as Appropriate

Name: **Syena Skinner**
Designation **Associate Director for Recovery, Inclusion and Learning** Date: **5th January 2024**

Appendix J - Monitoring Compliance and Effectiveness of Trans Staff Policy

What key element(s) need(s) monitoring as per local approved policy or	**Who will lead on this aspect of monitoring?**	**What tool will be used to monitor/check/ observe/assess/ inspect/ authenticate that everything is**	**How often is the need to monitor each element?** **How often is the need complete a**	**Who or what committee will the completed report go to?** **How will each report be**	**Which committee, department or lead will undertake subsequent recommendations and action planning for any or**	**How will system or practice changes be implemented and how will these be shared.**
Element to be	**Lead**	**Tool**	**Frequency**	**Reporting arrangements**	**Acting on recommendations**	**Change in practice and**
1. Transgender staff satisfaction via the NHS Staff Annual Survey	1. EDI Manager	Staff Survey	Annually.	The report will be shared with the LGBT+ Staff Network Group and the EDI Steering Group.	EDI Steering Group with Divisional Representation	Through the EDI Steering Group and Divisional Boards as appropriate. Lessons will be shared via the EDI Steering Group and